

**LEE'S SUMMIT POLICE DEPARTMENT
GENERAL ORDER 100.06**

SUBJECT: Disciplinary Procedures	Issue Date: 07-31-2026	Effective Date: 07-31-2026
Rescinds: General Order 100.06 issued 01-14-2022		
Reference: CALEA 26.1.4, 26.1.5, 26.1.6, 26.1.7, & 26.1.8; G.O. 100.04, 100.05, 100.10; RSMo 105.450 (10); City Policy, Chapter 4: Rules and Regulation, Section 415; RSMo 562.016		
By Order Of: W. Travis Forbes, Chief Of Police		

I. POLICY

A disciplinary process will be managed to promote reasonable, fair, and consistent treatment of employees in order to maintain efficient and effective law enforcement services. The disciplinary process provides substantially similar or greater procedures than those enumerated in Section 590.502 RSMo., commonly known as the Law Enforcement Bill of Rights.

II. PROCEDURES

A. Employee Responsibility

1. Employees are expected to know and conform to Department and City rules, regulations, procedures, ordinances, and State and Federal laws which provide direction for appropriate actions and decisions.
2. Supervisors are expected to be responsible for employee performance, provide direction, and encourage behavioral changes that will reduce an employee's risk of involvement in disciplinary actions.

B. Forms of Corrective Action (26.1.4)

1. The general intent of any corrective action is to change or modify an employee's behavior and/or improve productivity and effectiveness. This may be accomplished by utilizing one of the following methods, when appropriate:
 - a. Training – when an incorrect procedure has been applied or a minor rule, regulation, or General Order violation has occurred with minimal adverse outcome. (26.1.4a)
 - b. Counseling – when an employee's behavior has resulted or could have resulted in a more adverse outcome or the employee has not responded to previous training on the same or similar topic. (26.1.4b)
 - c. Punitive (discipline) – when an employee has acted with such behavior to cause or potentially cause a serious adverse outcome or an employee has not responded to previous training and/or counseling on the same or similar topic. Types of punitive actions (26.1.4c):
 - Reprimand (written)
 - Suspension
 - Demotion
 - Termination

C. Supervisory Procedures

1. Supervisors will conduct an investigation when allegations are made about improper employee actions/decisions. When such complaints result in disciplinary action, a supervisor will evaluate the potential cause(s) based on the totality of the circumstances and determine the appropriate level of discipline.
2. Supervisors are not required to begin disciplinary actions at the lowest level and progress to punitive levels.
3. Supervisors will present the disciplinary action to an employee in private, when practical.
4. Supervisors may request the Chief of Police/designee to review and consider whether a situation warrants assignment as an internal investigation.

D. Implementation and Documentation of Corrective Action (26.1.5)

1. Quality supervision involves the routine training and counseling of employees to improve performance. These actions may be conducted without the approval of a higher rank and informally documented at the discretion of a supervisor. (26.1.4a,b)
2. A higher ranking supervisor will have the discretion to require the documentation of informal corrective actions (e.g. training, counseling) imposed by a supervisor of lower rank.
3. A supervisor may formally reprimand an employee without the approval of a higher rank. When a supervisor takes such action, the documentation will be reviewed through the Chain of Command to the Chief of Police. (26.1.4c)
4. When a supervisor makes a decision to propose suspension, demotion, transfer, or termination, documentation will be forwarded through the Chain of Command to the Chief of Police/designee for approval. This does not prevent a supervisor from placing an employee on administrative leave with pay during an urgent circumstance. (26.1.4c)
5. The employee will be notified, in writing, of any disciplinary action.
6. A shift supervisor and/or division commander will oversee the implementation of disciplinary actions and monitor the effectiveness and outcome for desired results.
7. A Department Disciplinary Form will be required and completed by a supervisor to document formal disciplinary actions. After review and/or approval, the form will be forwarded to the Office of the Chief of Police for entry into the Department Administrative Database. Supplemental written/taped report(s) that are completed will have the same requirements. All disciplinary forms/reports will be maintained on file.

E. Sworn Employee Appeal Process (26.1.6)

1. An officer may appeal disciplinary actions involving suspensions, transfer, demotion, termination, or when placed on a status resulting in economic loss. This appeal process differs from the grievance process as outlined in City Policy.
2. Unless an officer is represented by a work agreement that provides an alternate appeal process, the officer may appeal the decision through the Chain of Command in five (5) day increments after receiving a decision from their immediate supervisor. The appeal must be in writing, stating the specific reasons for the appeal.

3. If an appeal is not resolved at the level of the Chief of Police, an officer can, within five (5) working days, request a due process hearing with the City Manager/designee. Seven (7) days notice of the due process hearing will be provided.
4. The officer will be afforded the following due process rights at the hearing:
 - a. The right to be represented by an attorney or other individual of their choice during the hearing;
 - b. An opportunity to access and review documents, at least seven (7) days in advance of the hearing, that are in the possession of the Department and were used as a basis for the disciplinary action; and
 - c. The right to refuse to testify at the hearing if the officer is concurrently facing criminal charges in connection with the same incident. The decision not to testify shall not result in additional internal discipline.
5. A complete record of the hearing shall be kept by the Department.
6. Due process hearings shall remain confidential and shall not be subject to disclosure under Missouri Sunshine Law, except by lawful subpoena or court order.
7. The City Manager/designee will render a written decision, order, or action; to include a finding of fact, and forward to the officer subject to the due process hearing.
8. Employees represented by a work agreement will be afforded the appeal process specified in that work agreement.

F. Non-Sworn Employee Appeal Process (26.1.6)

1. An employee may appeal disciplinary actions involving long-term suspensions, demotion, or termination. This appeal process differs from the grievance process as outlined in City Policy.
2. An employee may appeal the decision through the Chain of Command in five (5) day increments after receiving a decision from their immediate supervisor. The appeal must in writing, stating the specific reasons for the appeal.
3. If an appeal reaches the level of the Chief of Police/designee, a meeting may be scheduled. Two (2) working days notice of the meeting will be provided.
4. The Chief of Police/designee will render a disciplinary decision and forward, in writing, to the involved parties within five (5) working days.
5. Unique circumstances which do not fit the normal disciplinary process may require the Chief of Police/designee to determine an appropriate and fair process to handle the matter within the Department.

G. Termination Notice (26.1.7)

1. Employees that are terminated will receive written notice that will include the following information:
 - a. Reason for termination. (26.1.7a)
 - b. Effective date of termination. (26.1.7b)
2. Status of fringe and retirement benefits after termination will be provided by Human Resources. (26.1.7c)
3. This section may not apply to entry-level probationary employees. (26.1.7)
4. The termination notice will be included in the documentation submitted to the City of Lee's Summit Human Resources Department.

H. Maintenance of Disciplinary Records (26.1.8)

1. Three copies of the final disposition concerning employee disciplinary actions will be made. One copy will be given to the employee, the second copy placed in the employee file, and the original submitted to the City of Lee's Summit Human Resource Department.
2. An employee may make a request to the Office of the Chief of Police for permission to view their personnel file. The file may be examined in the Office of the Chief of Police. No documents may be copied, removed, or added without the approval of the Chief of Police/designee. Employees must sign their name, date, and time to document the inspection of their file.
3. When an employee separates employment from the department, the personnel file will be forwarded to the City Human Resources Department.